

AshLé Penn

Mother of Al-Mira Davis

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May 8, 2026

Sonya Faulkner

Interim D16 Manager Washington County ODHS

Case No. **25JU04261**

To: Sonya Faulkner | Interim D16 Manager

Washington County ODHS

RE: Al-Mira Davis | Case No. 25JU04261 | Formal Notice of Settlement Violations, Documented Failures, and Demand for Immediate Reunification

NOTICE OF PRESERVATION OF ALL RECORDS

Dear Ms. Faulkner,

My daughter wants to come home. She has been saying that for eight months, and I have been saying the same. On January 28, 2026, you acknowledged that the statement used to trigger this removal had been recanted. That framing understates what actually occurred: Al-Mira did not recant a prior statement. She denied ever making the alleged self-harm statement at the time it was first raised, in the presence of family and DHS. DHS immediately terminated that call upon hearing as much and then sought to cut off all contact between us for a substantial time thereafter. The alleged statement then served as the asserted basis for emergency protective custody on September 6, 2025 — but it does not appear in the dependency petition as a basis for jurisdiction.

A statement used to justify emergency removal that is not pleaded as a jurisdictional basis is not a foundation. It is a gap. And that gap has never been filled, because the petition's generalized "one or both parents" allegations still do not identify what I specifically did that supports removal, even though ODHS's own contemporaneous record reflects its willingness to release Al-Mira to me that same night and contains no reference to any dangerous parental conduct or incapacity on my part.

On April 28, 2026, after five additional months had passed, you told me on a recorded call that "nothing has changed." I am writing this letter because that statement is the problem, not the update. Eight months into this case, ODHS has not identified the specific conduct that allegedly justifies separating my daughter from her family. That is not a procedural oversight. It is a legal impossibility, and it is the subject of this letter.

This correspondence constitutes formal notice under the *Wyatt B. v. Kotek* settlement agreement (U.S. District Court, District of Oregon, Case No. 6:19-cv-00556-AA), Title II of the Americans with Disabilities Act and Section 504 of the Rehabilitation Act, ORS 419B.340(1), ORS 419B.343, ORS 419B.815, ORS 419B.918, ORS 30.275, 42 U.S.C. §671(a)(15)(B)(i), the First, Fourth, and Fourteenth Amendments to the United States Constitution, and Article I, section 9, of the Oregon Constitution. Every factual assertion set out here is supported by documentary evidence, recorded calls, or DHS's own contemporaneous communications.

SECTION I: AL-MIRA DAVIS — CLASS MEMBERSHIP, INDIVIDUAL CLAIMS, AND THE RECORD

A. Class Membership

Al-Mira Davis has been in ODHS substitute care since September 6, 2025. She is a member of the certified class in *Wyatt B. v. Kotek, et al.*, and the obligations ODHS undertook under that settlement apply to her. The failures documented in this letter fall within the settlement's monitoring and enforcement framework.

B. Individual Claims Preserved Under Section 15

Pursuant to Section 15 of the settlement agreement, the release of class claims does not preclude class members from asserting claims for monetary damages arising out of their individual circumstances or from seeking individualized relief against Defendants. Al-Mira's individual claims remain preserved. This letter provides notice that those claims are being presented to monitoring counsel.

C. The Emergency Basis and the Petition Are Irreconcilable

The sole triggering event for my daughter's removal was an alleged statement of self-harm. Al-Mira denies making it. On the night of the incident, during a monitored phone call we had as the first instance of my direct communication with her that day and with both DHS and my uncles present, she stated plainly and without prompting that she did not make that statement. DHS terminated the call and cut off contact between us. DHS also directed the hospital to conceal her from me during her stay, without a court order and without identifying what conduct of mine was supposedly dangerous. State action causing a child to be detained at a hospital as part of a child-abuse investigation constitutes a seizure where a reasonable parent would believe she cannot take her child home, and a warrantless seizure is lawful only where officials have reasonable cause, *after* reasonable investigation, to believe the child is in imminent danger of serious bodily injury. *Jones v. County of Los Angeles*, 802 F.3d 990 (9th Cir. 2015); *Keates v. Koile*, 883 F.3d 1228 (9th Cir. 2018).

That standard was not met. But the more fundamental problem is this: the alleged self-harm statement was used as the asserted basis for emergency protective custody on September 6, 2025, and it does not appear in the dependency petition as a basis for jurisdiction. Those two things cannot both be true. Either the statement was sufficient to establish an emergency basis for removal — in which case it must be pleaded and proven as a jurisdictional ground — or it was not sufficient, in which case the emergency removal was not lawfully authorized. DHS cannot invoke a fact to justify emergency action and then decline to plead it as a basis for continued custody. That disconnect is not a technicality. It is a constitutional defect in the removal itself, and it has never been cured.

You acknowledged the recantation — or more precisely, the denial — on our January 28, 2026 recorded call. A contested, unassessed statement by a 14-year-old in a hospital bed, acknowledged by district leadership as recanted, does not establish a basis for emergency removal, continued custody, or dependency jurisdiction. And the petition that followed shifted to generalized "one or both parents" allegations without identifying what conduct by me supposedly supports those allegations — even though ODHS's own contemporaneous record reflects its willingness to release Al-Mira to me that same night and contains no reference to any dangerous parental conduct or incapacity on my part.

D. The Removal Standard Was Not Met — and the Federal Funding Obligation Was Breached

Emergency removal is subject to constitutional and statutory limits. Officials may remove a child from a parent without prior judicial authorization only if the information they possess provides reasonable cause to believe that the child is in imminent danger of serious bodily injury, and even then they must first pursue reasonable avenues of investigation. *Wallis v. Spencer*, 202 F.3d 1126 (9th Cir. 2000). Oregon dependency law reflects a strong preference that children remain in their own homes, and ODHS is ordinarily obligated to work toward reunification rather than separation. *Dept. of Human Services v. C. S. C.*, 303 Or. App. 399 (Or. Ct. App. 2020).

The obligation to make reasonable efforts before removal is not merely a state-law courtesy. It is a federal funding condition. Oregon receives Title IV-E foster care funds from the federal government. As a condition of that funding, Oregon's state plan must assure the U.S. Department of Health and Human Services that reasonable efforts will be made, *prior to the placement of a child in foster care*, to prevent or eliminate the need for removing the child from the child's home. 42 U.S.C. §671(a)(15)(B)(i). The statute is explicit: the child's health and safety are the paramount concern in making that determination. 42 U.S.C. §671(a)(15)(A). Oregon has codified this obligation at ORS 419B.340(1), which requires the court to determine, in the disposition order, whether ODHS made reasonable efforts to prevent removal. Oregon's own administrative rules go further: OAR 413-030-0210(3) requires ODHS to document those efforts and present them to the court, and OAR 413-100-0240 requires a judicial determination within 60 days of removal. If that determination is not obtained, the child is ineligible for Title IV-E foster care maintenance payments for the duration of the placement.

None of that happened here. The contemporaneous documentary record — DHS's own texts and emails — shows that no safety plan was offered to me before the decision to remove Al-Mira had already been made. The messages exchanged among Heather Kitto, Angela Bennett, and me at approximately 5:40 p.m. on September 6, 2025 contain no attempt to engage me in safety planning. DHS did not ask about my knowledge of suicidal ideation, did not assess my protective capacities, and did not inquire into what measures had already been put in place at home. The 5:59 p.m. text told me that Al-Mira "will not be released to your custody tonight." The 7:01 p.m. email from Supervisor Kitto came after that decision had already been made and communicated. An email sent after the removal decision cannot retroactively satisfy a pre-removal obligation.

DHS has represented to the court that I "refused a safety plan." That representation is false — not merely disputed, but contradicted by DHS's own contemporaneous communications. The documentary record contains no pre-removal offer of an in-home safety plan, no assessment of my protective capacities, and no collaborative safety planning before DHS invoked emergency custody. One cannot refuse what was never offered. That representation was material: it goes directly to whether DHS made reasonable efforts before separating my daughter from her family and whether I failed to cooperate with such efforts. The Fourteenth Amendment prohibits deliberate fabrication of evidence by a state official, and deliberately fabricating evidence in civil child-abuse proceedings violates due process when liberty or property interests are at stake. *Spencer v. Krause*, 857 F.3d 789 (9th Cir. 2017); *Costanich v. Dep't of Social & Health Services*, 627 F.3d 1101 (9th Cir. 2010).

I also exercised protective capacity immediately. When I learned that Al-Mira was at the hospital, I arranged for my uncles — Eric and Marcus Taylor, blood relatives known to Al-Mira — to go to the hospital to receive her. DHS refused, stating it would not release Al-Mira to "just anyone." The next day, DHS approved Marcus Taylor as a placement resource, certified him, and placed Al-Mira in his care. Those two positions cannot be reconciled. If Marcus Taylor was an appropriate placement on September 7, his availability on the night of September 6 is direct evidence that removal was not necessary. That sequence forecloses any serious claim that reasonable efforts to prevent removal were made.

ODHS's own March 2024 Child Welfare Transformation Progress Report commits the agency to being "trauma-responsive, family and community-centered, and focused on safety and prevention." *Oregon Dep't of Human Services, Child Welfare Division Progress Report* (Mar. 2024). A trauma-responsive agency does not make a 19-minute removal decision based on an unassessed, contested statement by a child in a hospital bed. A family-centered agency does not turn away a mitigating family member at the hospital door and then place the child with that same person the next day. A prevention-focused agency does not bypass every preventative step the statute requires and then tell the mother, seven months later, that "absolutely nothing has changed." The agency's own stated values condemn its own conduct in this case.

E. Section 2.4 — Mental Health

DHS has not produced documentation of any ODHS-initiated mental-health assessment or referral for Al-Mira that was independent of and more appropriate than the services her parents had already arranged before removal. DHS should not receive compliance credit under Section 2.4 for duplicating services already in place as a result of protective parental conduct, while simultaneously alleging that I lacked the capacity to parent. The preexisting enrollment is evidence of parental action, not agency initiative.

F. Section 2.1 — Placement Instability, Lawful Parental Participation, and the Warrant

This section addresses three distinct issues that have been improperly blended together in this case.

1. Placement instability

The *Wyatt B.* settlement requires ODHS to reduce the rate of maltreatment of children in care. As of March 2024, Oregon's maltreatment-in-care rate was 16.4 victimizations per 100,000 days, nearly double the federal standard of 9.1. Al-Mira's placement has recently experienced instability, as reflected in the April 27 and April 28, 2026 correspondence. Where placement stability is deteriorating, the agency's obligation is to assess lawful, safe options for the child — including whether reunification can safely occur and what services and visitation are required to move the case toward a lawful resolution. Instead, ODHS has substituted procedural barriers for a child-welfare response. I remain available, willing, and have never been informed what conduct of mine supposedly justifies keeping my daughter from me.

2. Lawful parental participation

The agency and the court have treated my physical presence at the Washington County courthouse as a practical precondition to participation. That position is inconsistent with Oregon dependency law as applied by the Oregon Court of Appeals. Oregon law permits remote participation in juvenile dependency proceedings, and the Court of Appeals has held that a juvenile court abuses its discretion when it denies telephonic participation under circumstances in which the parent is attempting to participate and then proceeds as though the parent failed to appear. *Dept. of Human Services v. M. L. N.*, 493 P.3d 1127 (Or. Ct. App. 2021). The Court of Appeals has also recognized that nothing in the juvenile code or case law categorically requires video or in-person appearance in every circumstance, and that telephonic participation may satisfy due process where the parent can testify, consult with counsel, and otherwise participate. *Dept. of Human Services v. E. L. P.*, 336 Or. App. 751 (Or. Ct. App. 2024).

I have filed limited appearances, written objections, and requests for records; I have requested accommodations; and I have repeatedly attempted to participate. To the extent the court or agency contends that my lawful participation required physical presence in every instance, that position is also in tension with the written-answer and remote-participation framework reflected in ORS 419B.815 and ORS 419B.918, as well as the remote-hearing framework reflected in Chief Justice Order No. 23-028 and Washington County Presiding Judge Order No. 343. A Webex session was apparently generated for the September 8, 2025 shelter hearing. DHS had my email address and telephone number, has regularly used them to contact me, and yet no remote link was provided to me. The infrastructure existed. I was not given access to it.

ODHS cannot simultaneously refuse lawful avenues of participation and then characterize me as noncompliant or disengaged. My participation has been real, continuous, and documented.

3. The unrelated warrant is not a dependency ground

Any active warrant arises from a different proceeding that I am actively contesting on constitutional grounds. No dependency petition served on me alleges the warrant itself as a basis for jurisdiction. No petition allegation states that the conduct underlying that warrant creates a danger to Al-Mira. No caseworker, supervisor, or judicial officer has identified a present nexus between that collateral

matter and either of the petition allegations ODHS has raised against me.

Oregon law does not permit dependency jurisdiction to rest on criminal history, possible future incarceration, or collateral criminal-process facts without evidence of a current, nonspeculative risk of harm to the child and a nexus between that risk-causing conduct and the child. A parent's criminal history, without more, is insufficient. *Dept. of Human Services v. R. D.*, 502 P.3d 1183 (Or. Ct. App. 2021). The incarceration of a parent is a basis for jurisdiction only if, as a result of that incarceration, the child faces a threat of serious harm that is reasonably likely to occur. *Dep't of Human Servs. v. L.L.S. (In re Z.S.)*, 413 P.3d 1005 (Or. Ct. App. 2018). An indictment alone does not establish facts showing a risk of harm to a child. *Dept. of Human Services v. N. L. B.*, 306 Or. App. 93 (Or. Ct. App. 2020). An unrelated warrant is not self-proving.

The petition and the jurisdictional judgment also define the permissible bases of continued wardship. A juvenile court may not continue wardship based on facts not alleged in the petition, and it may not rely on conditions not explicitly stated or fairly implied by the jurisdictional judgment. *Dept. of Human Services v. A. H.*, 320 Or. App. 511 (Or. Ct. App. 2022); *Department of Human Services v. T.L.*, 403 P.3d 488 (Or. Ct. App. 2017). Later "actual notice" does not cure that defect. *T.L.*, 403 P.3d 488. If ODHS now wishes to invoke a warrant from an unrelated proceeding as an operational basis for maintaining custody or obstructing reunification, it must first identify where that theory was pleaded and how it creates a present, nonspeculative risk to Al-Mira. It has done neither.

On the April 28, 2026 recorded call, Caseworker David Milne described the warrant in terms that were factually inaccurate and could not accurately explain what it was for. A warrant the assigned caseworker cannot accurately describe has not been meaningfully assessed as a child-safety concern. It has been used as a practical barrier to courthouse presence without any evidentiary showing that it bears on Al-Mira's welfare.

G. Section 2.7 — ADA Window

Section 2.7 permits the Neutral to recommend additional monitoring categories within the scope of ADA-related claims within two years of the settlement's effective date of September 12, 2024. That window closes on September 12, 2026. I have a documented disability arising directly from prior DHS involvement with my family. I requested that DHS communicate with me digitally by email, avoid postal mail, limit unnecessary in-person contact, and use written or telephonic communication wherever possible. I am an OregonONE user. DHS has accepted the arrangement not to send mail through the United States Postal Service.

On our April 28, 2026 call, you stated that I was "creating barriers." That characterization is false and retaliatory in context: the conduct you described as a barrier is my insistence on using lawful accommodations and requiring ODHS to identify the factual basis for keeping my daughter from me. ODHS's own March 2024 Progress Report commits the agency to being "trauma-responsive." Denying a trauma-related accommodation request and characterizing the exercise of that accommodation as "creating barriers" is not trauma-responsive. It is the precise conduct the ADA window was designed to capture.

H. Section 9.2.2 — Enforcement

Section 9.2.2 of the settlement provides that the Arbitrator may employ enforcement mechanisms within the legal and equitable powers of the court, including specific performance, findings of non-compliance or contempt, remediation plans, and attorney fees and costs. That provision is not theoretical. It is the mechanism through which these failures may be addressed if ODHS does not correct them.

I. Oregon Tort Claims Act — ORS 30.275

Notice of claim under ORS 30.275 has already been served on Washington County and the State of

Oregon. That notice is incorporated here by reference. The claims preserved therein — including emotional distress, loss of parental companionship, constitutional violations under 42 U.S.C. §1983, and punitive damages for deliberate constitutional violations — remain active and are supplemented by the conduct documented in this letter.

J. Jurisdictional Impossibility

For dependency jurisdiction to be exercised — and to continue — the State must prove by a preponderance of the evidence that the child’s condition or circumstances expose the child to a current, nonspeculative threat of serious loss or injury that is likely to be realized. DHS must establish the type, degree, and duration of the harm at issue. *Dept. of Human Servs. v. J. H. (In re K. M. P.)*, 425 P.3d 791 (Or. Ct. App. 2018). DHS must also prove a nexus between the allegedly risk-causing conduct and the harm to the child. *Dept. of Human Services v. C. J. T.*, 258 Or. App. 57, 62 (2013). Continued jurisdiction requires proof that the adjudicated bases still pose a current threat of serious loss or injury that is reasonably likely to be realized. *Dept. of Human Services v. T. D. G.*, 455 P.3d 591 (Or. Ct. App. 2019); *Dept. of Human Services v. N. L. B.*, 306 Or. App. 93 (Or. Ct. App. 2020).

DHS cannot meet that burden here. It has not identified my supposedly dangerous conduct. It cannot articulate the specific harm Al-Mira allegedly faces in my care. It cannot establish a causal link between anything I have done and a present risk of injury to my daughter. Mr. Milne has not answered that question. You did not answer it on January 28, 2026. You did not answer it on April 28, 2026. The next conversation was pushed to June 2 — as though eight months were still not enough time to identify the basis for state interference with my family.

The consequences are not merely procedural. Under ORS 419B.343, any services ODHS requires of me must bear a rational relationship to the jurisdictional basis. DHS’s efforts and a parent’s progress are evaluated by reference to the facts that formed the bases for jurisdiction. *Department of Human Services v. T.L.*, 403 P.3d 488 (Or. Ct. App. 2017). If ODHS cannot identify the jurisdictional basis, it cannot lawfully design services to address it, cannot measure progress toward ameliorating it, and cannot lawfully maintain an open-ended reunification process with no defined target. If there is no identifiable jurisdictional basis, there are no services that can bear a rational relationship to it. If there are no such services, there is no meaningful case plan. If there is no meaningful case plan, there is no lawful mechanism by which I can demonstrate amelioration. And if there is no lawful mechanism for amelioration, ODHS is maintaining my daughter’s separation from her family without a legally sufficient basis to continue doing so.

That is not a functioning dependency case. It is unlawful indefinite state custody.

SECTION II: MONITORED SETTLEMENT CATEGORIES — DOCUMENTED FAILURES

Section 2.3 — Timeliness of Case Plans. Federal law requires an initial case plan within 60 days of a child’s placement in foster care, and the settlement monitors that requirement. Al-Mira has been in state custody for eight months. No case plan has been provided to me. No reunification goals have been identified. No services have been offered. No petition was ever supplied to me, and I had to ask you by phone what allegations DHS was even asserting. On April 28, 2026, you told me you hoped to have “a concrete plan on how we move forward” before the next hearing. Eight months in, the agency still does not have a concrete plan. “Move forward” is not a plan, and it does not cure prior constitutional or statutory violations.

Section 2.4 — Mental Health Services. As set out in Section I.E above, DHS has provided no documentation of ODHS-initiated mental-health services independent of those already arranged by the family before removal. No treatment plan has been shared with me. No explanation has been given for eliminating contact between Al-Mira and her mother for eight months while purporting to act on a mental-health concern.

Section 2.5 — Appropriateness and Quality of Placements and Services. As established in Section I.D above, Al-Mira was placed with a relative I identified and mobilized on the night of removal — the same person DHS refused to release her to at the hospital. That sequence forecloses any serious claim that reasonable efforts were made to prevent removal. DHS then managed that placement for eight months while providing me no petition, no services, no visitation schedule, no reunification plan, no identified parental conduct, and no parental-capacity assessment. Al-Mira wants to come home.

Section 2.6 — Notification and Communication. The failures documented in Section I.J are dispositive here: no case plan, no identified parental conduct, no reunification timeline, no defined criteria for return. I have repeatedly requested records and clarification. The agency's response has been delay, cancellation, and vague statements about "moving forward." That is not meaningful notice.

SECTION III: THE AGENCY'S CONDUCT — THE RECORD

On February 4, 2026, you responded to my January 28 correspondence and told me you had investigated my concerns. You did not investigate the material issue. The concern I raised was not whether Al-Mira made a self-harm statement — the agency's own record already reflects that the statement was contested. The issue I raised was whether DHS offered me a safety plan before removing her. That is the representation that appears to have been made to the court. That is the representation contradicted by DHS's own contemporaneous communications. Failing to investigate a material misrepresentation of that magnitude is not a minor administrative oversight. It is potentially actionable. *Spencer v. Krause*, 857 F.3d 789 (9th Cir. 2017); *Costanich v. Dep't of Social & Health Services*, 627 F.3d 1101 (9th Cir. 2010).

Your statement on April 28, 2026 that "absolutely nothing has changed" was not a status update. It was a confirmation that this case has not been lawfully advanced in eight months. ODHS initiated this case. ODHS bears the burden of moving it toward a lawful resolution. Scheduling a follow-up 35 days out after eight months of no progress is not diligence. It is delay.

Asking a government agency to identify the legal basis for interfering with my fundamental parental rights is not "creating a barrier." It is the exercise of a constitutional right. The Due Process Clause protects the fundamental right of parents to make decisions concerning the care, custody, and control of their children, and a parent is entitled to a hearing on fitness before the State takes children from that parent's custody. *Troxel v. Granville*, 530 U.S. 57 (2000); *Stanley v. Illinois*, 405 U.S. 645 (1972). I do not need permission to be Al-Mira's mother. ODHS needs a lawful and articulable basis to prevent me from being her mother.

The Disparity in Treatment Raises Equal Protection and Discrimination Concerns That Are Formally Preserved.

Other families in dependency proceedings are told what conduct is at issue, provided a case plan, offered services, and given a defined path toward reunification. I have been denied those basic procedural protections for eight months. I formally preserve and raise the concern that race, disability, or both may have affected how this case has been handled. I am a Black mother. Al-Mira is a Black child. On our April 28, 2026 call, you acknowledged that racism in this district can operate tacitly and through unconscious bias. That acknowledgment, combined with the extraordinary procedural deprivation documented in this letter, requires review, preservation, and corrective action. See *City of Cleburne v. Cleburne Living Center*, 473 U.S. 432 (1985).

The Narrative That I Am Avoiding Service Is False.

I have appeared in this case repeatedly — through written filings, recorded calls with agency leadership, correspondence, and this letter. I have told the caseworker, the supervisor, and the district manager that I want to accept service. A parent who is avoiding service does not call the district

manager twice on the record, send written correspondence, and formally demand to be served.

Oregon law does not require the agency to throw up its hands when a parent has a known, active, regularly-used email address. ORS §419B.812 expressly provides that a summons may be transmitted by electronic mail as provided in ORS §419B.848. ORS §419B.851(7)(a) authorizes service by electronic mail in dependency proceedings. DHS has my email address, uses it, and has communicated with me through it throughout this case. The decision not to use it — while simultaneously advancing the narrative that I cannot be served — is not a good-faith effort to provide notice. It is a choice to maintain a procedural posture that forecloses my participation while blaming me for the foreclosure.

Any affidavit from a law enforcement officer in a separate proceeding characterizing me as avoiding service in this dependency case is not competent evidence of that fact. That officer has no independent basis to assess my conduct in a proceeding he is not a party to, and his characterization derives from a misidentification that took three months to acknowledge. A misidentification is not a foundation for an affidavit about conduct in a separate proceeding.

SECTION IV: NOTICE OF INTENT TO CONTACT MONITORING COUNSEL

I have spoken with the caseworker. I have filed with the court. I have submitted written objections. I have requested accommodations. I have repeatedly asked ODHS to identify the conduct that supposedly justifies keeping my daughter from me. No one has answered that question.

The *Wyatt B.* settlement exists because ODHS has a documented history of systemic failures. The monitoring framework exists because the court determined that ODHS could not be left to self-correct without oversight. I am not going outside the system. I am using the oversight mechanism created for situations exactly like this one. Whether monitoring counsel becomes necessary is a function of whether ODHS continues this course of conduct.

SECTION V: DEMANDS

Within 24 hours of receipt of this letter:

1. Written confirmation that all records relating to Al-Mira Davis (Case No. 25JU04261), Ashlé' Penn, and my other two children are being preserved in their entirety, consistent with the preservation notice in this letter.
2. Written identification of the specific parental conduct DHS is relying on to sustain the removal of Al-Mira Davis — not a characterization, not a reference to a retracted statement, but the specific conduct, the specific harm, the specific risk, and the specific causal link required by Oregon dependency law.
3. A written record of all efforts DHS contends it undertook *before removal* to prevent Al-Mira's removal, including documentation of any safety plan offered to me and any assessment of my protective capacities.
4. Written documentation of the risk of harm DHS alleges exists with respect to me, Al-Mira's mother.
5. All documentation in DHS's possession or custody relating to this case, including all filings made to the court.

Within 7 days of receipt of this letter:

6. A written case plan in compliance with Section 2.3 of the *Wyatt B.* settlement and ORS 419B.343,

identifying the jurisdictional basis, the services offered to address it, the timeline for completion, and the specific criteria by which reunification will be measured.

7. Written documentation of all mental-health services provided to Al-Mira Davis since September 6, 2025, in compliance with Section 2.4 of the settlement.
8. A written response to this letter, addressed to me at the email address listed above and consistent with the OregonONE communication preference DHS has already accepted.

Ms. Faulkner, you told me on January 28, 2026 that you recognized this vehicle was far down a hill. You were right. But it did not get there because of anything I did. It got there because, on September 6, 2025, DHS made a removal decision in 19 minutes — without assessing my parenting, without offering a safety plan, and without speaking to me substantively — and then attempted to justify that decision after the fact. When my uncle, Marcus Taylor, appeared at the hospital willing and available to receive my daughter, DHS turned him away. The next day, DHS approved him as a placement resource and placed Al-Mira with him. Those facts cannot be reconciled with any serious claim that removal was necessary.

Al-Mira wants to come home. I have never stopped fighting to bring her home. This record — every call, every email, every filing, and every unanswered request for the factual basis of this case — will be preserved and, if necessary, presented to monitoring counsel and any court or tribunal with authority to review this matter. I had hoped this could be resolved by the agency responsible for it. It still can be. But if ODHS continues to withhold the jurisdictional basis for removal, deny lawful participation, and delay reunification without a lawful case plan or identified parental conduct, then this record will proceed where the law requires it to proceed.

You are hereby notified that all documents, communications, records, notes, emails, text messages, audio recordings, case files, internal memoranda, placement records, court submissions, and any other materials relating to Al-Mira Davis (Case No. 25JU04261) and Ashlé' Penn must be preserved immediately and in their entirety. This obligation applies to all physical and electronic records, including but not limited to: all DHS case notes; all communications between DHS staff, supervisors, and legal counsel; all records relating to the September 6, 2025 removal decision; all placement records; all case-plan documents or the absence thereof; all communications with Washington County Circuit Court; and all records relating to the *Wyatt B. v. Kotek* settlement monitoring framework. Destruction, deletion, alteration, or concealment of any such records after receipt of this notice may constitute spoliation of evidence and will be treated as such in any subsequent federal or state proceeding. This notice supplements and renews all prior preservation demands previously served on Washington County and the State of Oregon.

Respectfully submitted,

AshLé Penn
Mother of Al-Mira Davis

Natural Mother
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CC: Monitoring Counsel — A Better Childhood / Disability Rights Oregon
Wyatt B. v. Kotek, Case No. 6:19-cv-00556-AA
U.S. District Court, District of Oregon (Eugene Division)